

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PARCEL OF LAND BEING SITUATED AT 5618 TOWNSEND PLACE AND DESCRIBED AS THE NORTH 170 FEET OF TRACT 6, BRINEY TRACTS, LARAMIE COUNTY, WYOMING, (GENERALLY LOCATED AT THE SOUTHWEST CORNER OF TOWNSEND PLACE AND EAST CARLSON STREET)”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Marion E Stanczyk Revocable Trust, owner of a parcel of land being described as the north 170 feet of Tract 6, Briney Tracts, Laramie County, Wyoming, has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said property accompanies this ordinance, said map prepared by John Steil, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 2500; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MR – Medium Density Residential – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 3. That all of the real property described herein be an addition to the City of Cheyenne, Laramie County, Wyoming, and the same hereby is annexed as zone District MR-2 – Medium Density Residential, Developing – and shall become a part thereof.

Section 4. That the City Clerk is directed to file an executed copy of the annexation ordinance and map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to affix said property onto the official City Map.

Section 5. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 6. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____